

Criminal Law, Investigation and Procedure Victoria
Trial Procedure
Evidence
Evidence Act 2008 (Annotated)
Chapter 3 – Admissibility of Evidence (ss 55–139)
Part 3.7 – Credibility (ss 101A–108C)
Division 2 – Credibility of witnesses (ss 102–108)
Further protections—cross-examination as to credibility
Last Review: 28/09/2023

104 Further protections—cross-examination as to credibility

Legislation

- (1) This section applies only to credibility evidence in a criminal proceeding and so applies in addition to section 103.
- (2) An accused must not be cross-examined about a matter that is relevant to the assessment of the credibility of the accused, unless the court gives leave.

History Note

[Subs (2) am Act 68 of 2009, s 97 and Sch item 55.22]

- (3) Despite subsection (2), leave is not required for cross-examination by the prosecutor about whether the accused—
 - (a) is biased or has a motive to be untruthful; or
 - (b) is, or was, unable to be aware of or recall matters to which his or her evidence relates; or
 - (c) has made a prior inconsistent statement.

History Note

[Subs (3) am Act 68 of 2009, s 97 and Sch item 55.23]

- (4) Leave must not be given for cross-examination by the prosecutor under subsection (2) unless evidence adduced by the accused has been admitted that—
- (a) tends to prove that a witness called by the prosecutor has a tendency to be untruthful; and
 - (b) is relevant solely or mainly to the witness's credibility.

History Note

[Subs (4) am Act 68 of 2009, s 97 and Sch item 55.23]

- (5) A reference in subsection (4) to evidence does not include a reference to evidence of conduct in relation to—
- (a) the events in relation to which the accused is being prosecuted; or
 - (b) the investigation of the offence for which the accused is being prosecuted.

History Note

[Subs (5) am Act 68 of 2009, s 97 and Sch item 55.24]

- (6) Leave is not to be given for cross-examination by another accused unless—
- (a) the evidence that the accused to be cross-examined has given includes evidence adverse to the accused seeking leave to cross-examine; and
 - (b) that evidence has been admitted.

History Note

[Subs (6) am Act 68 of 2009, s 97 and Sch item 55.25]

History Note

[S 104 am Act 68 of 2009]

View [s 104 of the Evidence Act 2008 \(Vic\)](#) within the legislation collection.

SECTION 104 COMMENTARY

[EA.104.20] Prior convictions of accused

Where the witness is the accused, further limits are placed on the capacity of the prosecution to cross-examine him or her regarding credibility. The starting point is that prior convictions of an accused are not admissible. This is reflected in [s 102](#). However, in relation to the prior convictions of an accused there is a strong presumption against receiving this type of evidence.

These additional protections for the accused against the admission of all forms of credibility evidence (not just prior convictions) are found in [ss 104](#) and [108B](#).

The extra protection accorded to an accused in a criminal matter is in addition to that set out in [s 103](#). Thus, in order for [ss 104](#) and [108B](#) to apply, as a threshold matter it must be established that the evidence in question could substantially affect the assessment of the credibility of the defendant.

Situations where leave not required

The combined effect of [ss 103](#) and [104](#) (and [s 108B](#)) is that where an accused gives evidence he or she can be cross-examined *without leave being* required of the court where the evidence could substantially affect his or her credit and the matter relates to whether the accused is (i) biased or has a motive to be untruthful or (ii) has made a prior inconsistent statement or (iii) is unable to be aware of or recall matters to which his or her evidence relates.

In relation to the first exception (bias and motive to lie), on one view an accused always have a motive to lie. However, in *Robinson v The Queen* (1991) 180 CLR 531; 65 ALJR 644; 55 A Crim R 318; 102 ALR 493¹ it was held that the relevant interest required here is something beyond the normal interest that a defendant has in not being found guilty. See also *MAJW v The Queen* [2009] NSWCCA 255.² This exception applies in situations where it can be established, for example, that the defendant is protecting a relative or friend.

Situations where leave required

Leave is required in all circumstances not within the parameters of (i), (ii) or (iii) (see above) and can only be granted where the evidence could substantially affect the credibility of the accused and the accused has adduced evidence that a prosecution witness is untruthful the evidence relates mainly to the witnesses' credibility and the evidence does not relate to the charged offence. Thus, leave is required where the defendant attacks the honesty of a prosecution witness on a basis other than events relating to the offence in question.

Leave cannot be given where the attack on the credibility of the prosecution witnesses relates to events for which the defendant is being prosecuted or the actual investigation of the offence. The rationale for this is that these matters are intricately related to the offence and the defendant should have every opportunity to challenge the evidence in relation to such matters.

The other situation where leave is required is where the accused gives evidence against a co-accused. The rationale for this is that a co-accused should be permitted to vigorously contest any evidence adduced against him or her, given the importance of the proceedings to the co-defendant. This exception is more liberal than that which applies to the prosecution. The triggering evidence does not need to relate to credibility or character. It can be any evidence that is contrary to the interests of the other accused and hence could simply be in the form of a denial to the charge where it is clear that one of the accused must have committed the offence.³

Discretion to grant leave is largely unfettered

The discretion regarding whether leave should be granted pursuant to [ss 104\(3\)](#) and [104\(6\)](#) is largely unfettered. In *R v El-Azzi* [2004] NSWCCA 455 the court made the following observations about the nature of discretion:⁴

The only serious questions arising on appeal in relation to this evidence are, then, whether leave should have been granted to bring out the appellant's prior conviction in cross-examination and whether the evidence should have been excluded pursuant to [s 135](#) and/or [s 137](#).

Did his Honour err in the exercise of his discretion in those respects?

The leading case is the decision of the High Court in *Phillips v The Queen* (1985) 159 CLR 45; 60 ALJR 76; 62 ALR 479. The appellant was charged with rape. He was tried in Queensland. At the trial, questions were asked which, it was held, impugned the character of the complainant. During the cross-examination of the appellant, the prosecutor applied for permission under [s 15\(2\) of the Evidence Act 1977 \(Qld\)](#) to ask the appellant about a number of previous convictions for offences involving dishonesty. Permission was granted. Previous convictions were brought out. The appellant was convicted. The Queensland Court of Criminal Appeal dismissed the appeal. That decision was upheld by the High Court.

So far as is relevant, the provisions of the Queensland statute were, in relevant respects, substantially the same as [s 104](#).

On the hearing of the appeal in the High Court, counsel for the appellant advanced the proposition that the discretion under the statute to allow cross-examination of an accused as to credit should be exercised adversely to the accused only in exceptional circumstances. The High Court rejected that proposition, holding that the discretion was unfettered.

In so holding, however, the court emphasised the importance of the consideration that allowing such cross-examination was an exception to the general rule that evidence of an accused person's criminal history should not be adduced in a criminal trial.

In *R v Brown* [1960] VR 382, a decision of the Full Court of the Supreme Court of Victoria, Smith J had said that, in the exercise of the statutory discretion, it was necessary for the trial judge to take into account considerations which included that the legislation was not intended to make the introduction of a prisoner's previous convictions other than exceptional. In the joint judgment of the majority in *Phillips v The Queen* (at 53 (CLR)) it was said that, notwithstanding that the discretion was unfettered, the considerations mentioned by Smith J provided a valuable guide which was likely to be relevant in most cases ...

In exercising his discretion pursuant to s 104(2), his Honour was bound to take into account the considerations mentioned in s 192. His Honour did not mention, in that connection, two of the matters he was required to take into account pursuant to the section, namely, prospective unfairness and the nature of the proceedings. However, it is apparent that his Honour was alert to those considerations.

The question for this court is not how it would have exercised the discretion to grant leave but whether the trial judge erred in the exercise of the discretion. I am not satisfied that he did err.

Thus, whether or not leave should be granted is a matter for the discretion of the trial judge. The ultimate consideration is one of fairness. In exercising this discretion the judge must bear in mind the fact that prior convictions of an accused are only rarely to be admitted.

Prior convictions are more likely to be admitted where the conviction relates to a matter that is different to the charge offence and where the accused has launched a gratuitous and strong attack on the credibility of prosecution witnesses.

For an example of where a conviction appeal was upheld because the trial judge omitted to exercise the discretion pursuant to s 104, see *Tieu v The Queen* [2016] NSWCCA 111.⁵

Where the accused elects to not give evidence then pursuant to s 108B, credibility evidence is admissible against him or her in the same circumstances as where the accused does give evidence.

See also Odgers S, *Uniform Evidence Law* (Thomson Reuters, subscription service) at [EA.104.30] ff.

Footnotes

- 1 *Robinson v The Queen [No 2]* (1991) 180 CLR 531; 65 ALJR 644; 55 A Crim R 318; 102 ALR 493.
- 2 *MAJW v The Queen* [2009] NSWCCA 255.
- 3 *R v Davis* [1975] 1 WLR 345; [1975] 1 All ER 233. See also *Matusevich v The Queen* (1977) 137 CLR 633; 51 ALJR 657; 15 ALR 117.
- 4 *R v El-Azzi* [2004] NSWCCA 455 at [257]–[263], [270]–[271].
- 5 *Tieu v The Queen* [2016] NSWCCA 111.

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